



Mental Health Tribunal: Notification of Review (Mental Health) Procedure

Preamble

Consumer Participation

The Rockingham Peel Group (RKPG) recognises and fully supports the need for the patient and/or their primary carer to¹:

- Know and exercise their healthcare rights.
- Be engaged in their healthcare.
- Have access to information about treatment options.
- Participate in treatment decisions.
- Have access to information about agreed treatment plans.

Scope of Practice

It is the responsibility of each health care provider to ensure all patient care and therapeutic interventions they provide are within their individual scope of practice. Refer to the [RKPG Guidelines to Writing for Clinical Policy](#) for further information about Scope of Practice.

Background

- The Mental Health Tribunal's (MHT) primary statutory role is to review involuntary patients, in accordance with the [Mental Health Act 2014](#). When conducting a review the MHT comprises at least one lawyer, one Psychiatrist and one community member.
- In conducting a review, the MHT reviews the decision of a Psychiatrist to order or maintain the involuntary status of a patient and has to decide whether or not the involuntary order should continue to have effect (Mental Health Act [MHA] 2014 sections 6, 21 and 394).

Definition - Involuntary patients

Involuntary patients are those people who have been placed by a psychiatrist on an involuntary order under the MHA 2014. There are two types of involuntary orders that a psychiatrist may make:

- One is for a person to be detained in an authorised hospital as an involuntary patient (inpatient treatment order ITO) (MHA 2014 section 25(1)).
- The other is for the person to be placed on a Community Treatment Order (CTO), and involuntary order that requires the patient to comply with the treatment plan specified in the order but otherwise enables the patient to live in the community (MHA 2014 section 25(2)).

Procedure

- Maximum respect and dignity is given to the patient being reviewed (and to family/personal support persons when they are present) and to all other participants in the review.
- Respect is accorded to members of the treating team, acknowledging their general

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- background training and skills alongside their concern for the patient.
- Active steps are taken to avoid or at least minimise patient distress occasioned by the review.
- Consistency is maintained and optimised in its processes, in order to facilitate patient and mental health service understanding of the Tribunal and its statutory obligations and requirements.
- The efficiency and timeliness of each review is optimised in order to balance:
 - * The need to properly review the order pertaining to each patient.
 - * The need to minimise patient distress and comfort caused by the review process itself.

Notice of review

- After a review is scheduled a 'Notice of Review', providing details such as date, time and venue is sent to the following people:
 - * The applicant.
 - * The patient (where the applicant is not the patient).
 - * The treating or supervising psychiatrist.
 - * The patient's representative (if available).
 - * The responsible practitioner (if the patient is on a CTO).
 - * The Mental Health Information Coordinator (MHIC).
 - * Administrative assistant (Community Clinics) via the following email addresses:
RKPG.RockinghamMHTribunal@health.wa.gov.au
RKPG.PeelMHTribunal@health.wa.gov.au
 - * Copy placed in patient medical record by MHIC/administrative assistant.

Notification process

Responsibilities of the MHIC/administrative assistant:

- Books the hearing appointment for inpatient or community MHT hearings.
- Receives an email from the MHT regarding any scheduling of hearings on a specific date.
- MHIC/administrative assistant forwards this email to Consultants, medical officers (MOs) and case managers advising on date and time of scheduled hearings and due date of reports.
- The MHIC/administrative assistant emails a reminder to consultants, medical officers and case managers approximately three (3) days prior to due dates of the reports.

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- The MHIC/administrative assistant will email reports to the MHT at least three days prior to the scheduled hearings.
- Prior to review the MHT will contact (via telephone) the MHIC/administrative assistant to confirm room booking/video conferencing for specified date.

Compliance monitoring

Compliance will be monitored by any clinical incidents via Datix.

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References

1. Australian Commission on Safety and Quality in Health Care (ACSQH). The National Safety and Quality Health Service Standards Safety and Quality Improvement Guide: Standard 1 Governance for Safety and Quality in Health Service Organisations. 2nd ed. (Version 2) 2021. Available from <https://www.safetyandquality.gov.au/our-work/assessment-to-the-nsqhs-standards/>

Links

Mental Health Act 2014

South Metropolitan Health Service Rights of Patients in Mental Health

Mental Health Tribunal

National Mental Health Standards

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